

Preety Gautam v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench (Court No. 40) · 22 March 2023 · Writ-C No. 7943 of 2023 ·
Writ disposed; EE to redress connection request in accordance with law

HEADNOTE

Writ seeking a new 2 kW commercial connection at a tenanted shop was disposed, with consent and without any opinion on the merits, by directing the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., Najibabad, to look into the grievance and redress it in accordance with law within three weeks of production of the certified copy.

FACTUAL SUMMARY

Preety Gautam, a tenant for five years of a shop, M/s Richers Home Furnishing, at Satya Vihar near Tayal Petrol Pump, Kotwali Road, Najibabad, Bijnor, applied on 15 January 2023 for a 2 kilowatt commercial electricity connection at the rented premises. It was not released. She filed this writ for a direction to provide the connection within a stipulated time. The electricity department submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained and that she should pursue the remedy under them.

HOLDING-UNITS

INTERPLAY · EA2003::UP-2005

new commercial connection — redress in accordance with law

HOLDING

With the consent of the parties, and without expressing any opinion on the merits, the writ is disposed of by directing the Executive Engineer, Electricity Distribution Division, Paschimanchal Vidyut Vitran Nigam Ltd., Najibabad, District Bijnor (respondent no. 3) to look into the petitioner's grievance for a new commercial connection and redress it in accordance with law within three weeks from production of a certified copy of the order. ¶ 1

FLAG no numbered clause; the order names only the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005

PRINCIPLE TAGS

redress-grievance-in-accordance-with-law On a writ for a new commercial connection, the Court, recording the department's submission that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained, declined to decide the merits and, with consent, directed the Executive Engineer to look into the grievance and redress it in accordance with law within three weeks of production of the certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A 2 KW COMMERCIAL CONNECTION AT THE RENTED SHOP

The Court expressly declined to express any opinion on the merits and left redress to the Executive Engineer in accordance with law. ¶ 1